2817

Executive Order.

Repealed
1940 C FR 10 3

The Consular Regulations are hereby amended as follows:

Paragraphs 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 90, 91, 92, and 93 are combined and amended to read as follows:

77. *Rights commonly guaranteed under treaties and conventions.*—The fundamental rights and privileges of consular officers depend upon the principles of international law and the customs and usages of nations. Certain rights and privileges are also specifically guaranteed to them by treaties. The several consular treaties and conventions of the United States with foreign powers are, or should be, on file in every consular office, and in each case the consul must examine the proper treaty for detailed information. The Department of State must necessarily trust to the discretion of the consul, on the one hand, not to permit his rights to be invaded without protest, and, on the other hand, not to claim what he can not maintain. When consular officers feel that they have reason to believe that the rights secured to them by treaty have been infringed, a report should be promptly submitted to the Department of State and to the supervising consul general, if there be one, or to the American diplomatic representative. The report should set forth in full the facts showing the infringement.

Through treaties with certain countries the United States has secured to its consular officers therein such rights as: the privileges, exemptions, and immunities granted the most favored nation; the inviolability of the consular office, dwelling, and archives; the right to exemption from arrest except for crimes under the local law, to exemption from taxation, military billeting, military service, and the obligation to appear as a witness; the right to correspond with local authorities in case of any infraction of treaty; the right to place the national arms and the name of the consulate on the consular office or dwelling, and to fly the national flag on the office or dwelling; the right to take depositions, and to adjust all matters pertaining to wrecks and salvage; the right to be informed by the local authorities of the death of citizens of the United States who die intestate or without heirs, and to take charge of and administer on property left by them; the right, in the absence of a diplomatic representative, to make requisition for the surrender of fugitives from justice; and, in a few countries, the right to exercise judicial power in civil or criminal cases, or both.

Not all treaties provide for the same rights, and with some nations the United States has no consular convention whatever. It is, therefore, the duty of every consular officer thoroughly to familiarize himself with the terms of whatever treaty or treaties may exist between the United States and the government from which he holds his exequatur.

Paragraph 95 is amended to read as follows:

95. *Correspondence.*—In the absence of other instructions from the Department, consuls will transmit under open cover, through their respective consuls general, their correspondence with and reports to the Department, and such of their correspondence as is required to be sent through the Department. Accounts and correspondence relative thereto should, however, be sent by a consul directly to the Department, or to the Comptroller General of the United States, as the case may be; but the accounts of vice consuls, consular agents and other subordinate officers must be transmitted through their principal officers.

Paragraph 96 is canceled.

Paragraph 97 is amended to read as follows:

97. *Leaves of absence and nomination of substitute and subordinate officers.*—Requests for leave of absence, and the nomination of substitute and subordinate officers by consuls must, in the absence of other instructions from the Department of State, be transmitted through the supervising consul general and receive his written approval.

Paragraph 98 is canceled.

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Paragraph 109 is amended to read as follows:

109. *Commanders of squadrons.*—When a naval squadron of the United States visits a foreign port where there is a consular officer, it is the duty of the commander of the squadron to send a boat ashore, with an officer on board, who shall call upon the consular officer, notify him of the arrival of the squadron, and tender him a passage to the flagship at such time as he may select. It is the duty of the consular officer to accept the invitation and visit the flagship as early as convenient, which must be within a period not exceeding twenty four hours, and to tender his official services to the commander.

Paragraph 110 is amended to read as follows:

110. *Commanders of ships of war.*—When a ship of war of the United States visits a foreign port where there is a consular officer, it is the duty of the commander thereof, if not a flag officer, to pay the first visit in person to a consul general, and to tender him passage to his ship. If the commander be a flag officer, or if the consular officer be of lower grade than a consul general, it is the duty of the commander to send a boat ashore, with an officer on board, to visit the consular officer and tender him a passage to the ship at such time as he may select. It is the duty of the consular officer to accept the invitation to visit the commander or return his visit, as circumstances may require, within a period not exceeding twenty four hours, and to tender to him his official services.

Paragraph 111 is amended to read as follows:

111. *Salutes.*—A consul general is entitled once while a naval force or vessel is in port to a salute of eleven guns; a consul to a salute of seven guns; and a vice consul, or consular agent, when he is the only representative of the United States at the post, to a salute of five guns. The salute may be fired either while the consular officer is on board (which is unusual), or while he is being conveyed from the vessel to the shore. In the latter case he will stand and face the vessel, and at the end of the salute acknowledge it by raising his hat.

Article IX, entitled "Correspondence with the Department of State" is canceled, and the following substituted therefor.

Article IX.

CORRESPONDENCE AND REPORTS.

114. *Correspondence on public matters.*—A consular officer may not correspond on public matters with any other official or branch of the Government of the United States than the Department of State, except as expressly provided in paragraph 118.

115. *Secretary of State only to be addressed.*—All communications to the Department of State must be addressed to the Secretary of State. Recourse to private letters to the Secretary or to other officers of the Department of State upon topics relating to official business is disapproved. Communications in relation to the public business must always be in the form of regular despatches to the Secretary.

116. *Confidential communications.*—Despatches regarded as especially of a reserved or secret nature should be conspicuously marked "Confidential" on the top of the first page. Where one or more paragraphs of a despatch seem to require precaution against publicity, a red line may be drawn on the margin opposite to mark them, and the word "Confidential" plainly written outside this line. The Secretary of State, however, reserves the ultimate right to decide whether the suggested reserve is necessary in the public interest.

117. *Correspondence of subordinates.*—The official correspondence of consuls assigned to, or on detail in, consulates general or consulates, vice consuls, interpreters, consular assistants, and student interpreters will be submitted to the examination of the principal consular officers to whom they are subordinate, or to whose office they are assigned. Consular agents are not authorized to address the Department of State directly, or to make their reports or returns, except through their respective superiors.

118. *With whom direct correspondence is permitted.*—As exceptions to the general rule stated in paragraph 114, a consular officer may correspond directly on public matters with the following:

1. The American diplomatic representative in the country in which he is assigned or detailed and other American consular officers.

2. Military and naval officers of the United States, serving abroad, with whom it may be necessary to communicate immediately information of importance.

3. Public health surgeons, special agents of the Treasury Department, agents of the United States Shipping Board, and representatives of the Departments of Commerce and Agriculture, on duty in foreign countries, with whom it may be necessary to correspond on subjects relating to their respective duties.

4. The Comptroller General of the United States, on matters pertaining to accounts only.

5. Collectors of customs and appraisers, on matters relating to invoices and prices current.

6. Immigration inspectors, on urgent immigration matters.

7. The Commissioner of Pensions, on routine pension matters.

8. United States despatch agents.

119. *Correspondence with private persons.*—Consular officers may correspond directly with private citizens in the United States, and others, respecting the private business matters of such persons. This class of correspondence is on the consul's side official, but is not on public matters.

120. *Use of official stationery.*—Consular officers are forbidden to use official stationery in their purely personal correspondence. They are also forbidden to sign themselves as consuls when acting in an unofficial capacity.

121. *Receipt of instructions.*—The receipt of all instructions from the Department of State must be acknowledged by return mail, on the form (No. 7a) provided for this purpose.

122. *Form and transmission of correspondence and reports.*—The form of correspondence and reports, and the manner of their transmission, will be governed by the rules on this subject established by the Department of State from time to time.

CALVIN COOLIDGE

THE WHITE HOUSE,

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